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These guidelines are more tailored to a corporate open source project. They are available under the same terms. Copyright 2019 Heather Meeker. If you modify this document, please take care not to suggest that I approved your modifications.

[Company Logo]

Trademark Guidelines

1. INTRODUCTION

This trademark policy (“**Policy**”) was prepared to help you understand how to use the COMPANY trademarks, service marks and logos with _____ software.

While some of our software is available under a free and open source software license, the copyright license does not include an implied right or license to use our trademark, and this Policy is intended to explain how to use our marks consistent with background law and community expectation.

2. TRADEMARKS SUBJECT TO THE GUIDELINES

This Policy covers:

1. Our **word** trademarks and service marks (the “Word Marks”): “COMPANY” **[list others, word marks only and not logos]**
2. Our logos (the “Logos”): The COMPANY logo at the top of this policy **[add others]**

This Policy encompasses all trademarks and service marks, whether Word Marks or Logos which are collectively referred to as the “Marks.” This Policy covers our Marks whether they are registered or not.

3. GENERAL USE GUIDELINES

Whenever you use one of the Marks, you must always do so in a way that does not mislead anyone, either directly or by omission, about exactly what they are getting and from whom. For example, you cannot say you are distributing the COMPANY software when you’re distributing a modified version of it, because recipients may not understand the differences between your

modified versions and our own. You also cannot use our logo on your website in a way that suggests that your website is an official website or that we endorse your website.

You can, though, say you like the COMPANY software, that you participate in the COMPANY community, that you are providing an unmodified version of the COMPANY software.[no user groups]

This fundamental requirement is that it should always be clear to recipients what they are getting and from whom.

You may not use the Marks in association with the use or distribution of software if you are also not in compliance with the copyright license for the software.

You may not use or register, in whole or in part, the Marks as part of your own trademark, service mark, domain name, company name, trade name, product name or service name.

Trademark law does not allow your use of names or trademarks that are too similar to ours. You therefore may not use an obvious variation of any of our Marks or any phonetic equivalent, foreign language equivalent, takeoff, or abbreviation for a similar or compatible product or service. We would consider the following too similar to one of our Marks:

MyCOMPANY
COMPANYFooBar

4. USE FOR SOFTWARE

4.1 Uses we consider non-infringing

4.1.1 *Re-distribution of unmodified source code or unmodified executable code we have compiled*

When you redistribute an unmodified copy of our software in accordance with our license terms, you are not changing the quality or nature of it. Therefore, you may -- and should-- retain the Word Marks and the Logos we have placed on the software to identify your redistribution -- whether that redistribution is made by optical media, memory stick or download of unmodified source and executable code. This kind of use only applied if you are redistributing an official distribution from this Project that has not been changed in any way.

4.1.2 *Distribution of executable code that you have compiled, or modified code*

You may use the Word Marks, but not the Logos, to truthfully describe the origin of the software that you are providing, that is, that the code you are distributing is a modification of our software. You may say, for example, that “this software is derived from the source code for COMPANY software.”

Of course, you can place your own trademarks or logos on versions of the software to which you have made substantive modifications, because by modifying the software you have become the

origin of that exact version. In that case, you should not use our Logos. Our source code version therefore does not contain our Logo data files.

4.1.3 *Statements about compatibility, interoperability or derivation*

You may use the Word Marks, but not the Logos, to truthfully describe the relationship between your software and ours. Our Mark should be used after a verb or preposition that describes the relationship between your software and ours. So you may say, for example, “Bob’s software for the COMPANY platform” but may not say “Bob’s COMPANY software.” **[To be considered: advertising applications as COMPANY compatible. Will you have a certification or self-certification program and trademark?]**

4.1.4 *Distribution of modified software*

You may use the Word Marks and the Logos for the distribution of code (source or executable) on the condition that any executable is built from the official Project source code and that any modifications are limited to switching on or off features already included in the software, translations into other languages, and incorporating bug-fix patches.

4.1.5 *Distribution of software preloaded on hardware*

You may use the Word Marks and the Logos in association with hardware devices on the condition that the executable installed on the device is the official source executable for the Project, and that you do not suggest that the Project is the source of the hardware device itself but rather than the Marks are for the software incorporated into the device.

5. USE FOR NON-SOFTWARE GOODS AND SERVICES

5.1 *Acceptable Uses*

5.1.1 *Publications and presentations*

You can use the Word Marks in book and article titles, and the Logo in illustrations within the document, as long as the use does not suggest that we have published, endorse, or agree with your work.

5.1.2 *User groups*

You can use the Word Marks as part of your user group name provided that:

- The main focus of the group is our software;
- The group does not make a profit;
- Any charge to attend meetings are to cover the cost of the venue, food and drink only.

You may not use or register the Marks as part of your own trademark, service mark, domain name, company name, trade name, product name or service name without our prior written approval.

5.2 Uses we consider infringing without seeking further permission from us

We will likely consider using the Marks as part of a domain name or subdomain an infringement of our Marks.

We will consider use of our Marks in connection with any conference, other than a user group as described above, an infringement of our Marks. If you wish to use our Marks for this purpose, please contact: _____.

6. GENERAL INFORMATION

6.1 Trademark marking and legends

The first or most prominent mention of a Mark on a webpage, document, packaging, or documentation should be accompanied by a symbol indicating whether the mark is a registered trademark (“®”) or an unregistered trademark (“™”). See our Trademark List for the correct symbol to use.

Also, if you are using our Marks in a way described in the sections “Uses for which we are granting a license,” please put following notice at the foot of the page where you have used the Mark (or, if in a book, on the credits page), on any packaging or labeling, and on advertising or marketing materials: “COMPANY is trademark of [COMPANY]. Used with permission from [COMPANY].”

6.2 What to do when you see abuse

If you are aware of any confusing use or misuse of the Marks in any way, we would appreciate you bringing this to our attention. Please contact us as described below so that we can investigate it further.

6.3 Where to get further information

If you have any questions about this Policy, would like to speak with us about the use of our Marks in ways not described in the Policy, or see any abuse of our Marks, please contact:

6.4 Proper trademark use

These rules hold true for all trademarks, not just ours, so you should follow them for our Marks as well as anyone else’s.

6.4.1 *Use of trademarks in text*

Always distinguish trademarks from surrounding text with at least initial capital letters or in all capital letters.

Unacceptable: COMPANY

Acceptable: COMPANY, COMPANY

Always use trademarks in their exact form with the correct spelling, neither abbreviated, hyphenated, or combined with any other word or words.

Unacceptable: COMPANYmm

Don't pluralize a trademark.

Unacceptable: I have seventeen COMPANYS running in my lab.

Always use a trademark as an adjective modifying a noun. You can see the nouns we prefer under "Our trademarks."

Unacceptable: This is a COMPANY.

Acceptable: This is a COMPANY application.

Don't translate a trademark into another language.

Acceptable: Quiero instalar COMPANY en mi sistema.

Unacceptable: Quiero instalar Nadar en mi sistema.

6.4.2 *Use of Logos*

You may not change any Logo except to scale it. This means you may not add decorative elements, change the colors, change the proportions, distort it, add elements, or combine it with other logos.

However, when the context requires the use of black-and-white graphics and the logo is color, you may reproduce the logo in a manner that produces a black-and-white image.

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